

IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.6649 of 2020

Arising Out of PS. Case No.-201 Year-2019 Thana- KURSAILA District- Katihar

1. SUMIT YADAV Son of Late Nepali Yadav Resident of Village - Kataria, P.S.- Kursela, Distt.- Katihar
2. Babloo Yadav Son of Rajendra Yadav Resident of Village - Kataria, P.S.- Kursela, Distt.- Katihar
3. Niwas Yadav Son of Chandrashekhar Yadav Resident of Village - Kataria, P.S.- Kursela, Distt.- Katihar
4. Raghu Yadav @ Radhe Yadav Son of Late Bhuneshwar Yadav Resident of Village - Kataria, P.S.- Kursela, Distt.- Katihar
5. Mantu Yadav Son of Brahmdeo Yadav Resident of Village - Kataria, P.S.- Kursela, Distt.- Katihar
6. Sudho Yadav Son of Rabbi Yadav Resident of Village - Kataria, P.S.- Kursela, Distt.- Katihar

... .. Petitioner/s

Versus

The State of Bihar.

... .. Opposite Party/s

Appearance :

For the Petitioner/s : Mr.Sanjeev Kumar Singh
For the Opposite Party/s : Mr.Manoj Kumar

CORAM: HONOURABLE MR. JUSTICE S. KUMAR
ORAL ORDER

2 01-07-2020 The proceedings of the Court are being conducted through Video Conferencing and the Advocates joined the proceedings through Video Conferencing from their residence.

Heard learned counsel for the petitioners and learned counsel for the State.

Petitioners apprehend their arrest in a case registered under Section 147, 148, 149, 341, 323, 307, 379, 384 of the Indian Penal Code and Section 27 of Arms Act.



It is submitted by learned counsel for the petitioners that during pendency of this case, petitioner no. 1 Sumit Yadav has already been arrested, as such, he wants to withdraw this application so far as petitioner no. 1 is concerned.

Accordingly, this application is dismissed as withdrawn against petitioner no. 1.

Informant has alleged in his fardbeyan that on 16.11.2019 at about 3:00 PM while he alongwith his villagers was ploughing the field, suddenly petitioners and other co-accused persons variously armed with deadly weapons came there and snatched Rs. 15,000/- from the pocket of one Ajay Mandal. Petitioner No. 2 Babloo Yadav assaulted the informant on his head by lathi, petitioner No. 3 Niwas Yadav fired from pistol which hit under the eye of Guddu Mandal and other accused persons also assaulted them by lathi and thereafter fled away.

It has been submitted on behalf of petitioners that they are innocent and have been falsely implicated in this case. There is general and omnibus allegation against petitioners.

Considering the nature of allegation against petitioners, I am not inclined to grant bail to the petitioners. Accordingly this application is dismissed.



However, if petitioners surrender and seek regular bail then their prayer for regular bail shall be considered on its own merits without being prejudiced by this order.

(S. Kumar, J)

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